

24STCV31034 24STCV31034

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Case Number: 24STCV31034 Hearing Date: September 8, 2026 Dept: 414

24STCV31034

Daniella Shear, et al. v. DLP Eye Group aka De La Pena Eye Group, et al.

Tuesday,

September 10, 2026

FINAL [MODIFIED]

ORDER GRANTING

MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT [Res. No. -5997]

I.

BACKGROUND

The

complaint alleges Plaintiff Daniella Shear suffered loss of vision in her left eye as a result of Defendants' negligence in providing care and treatment. The operative complaint is the First Amended Complaint filed on April 22, 2025.

Defendant

Med-Laser Surgical Center, LLC ("Med-Laser") argues that it reached a confidential settlement with Plaintiffs and seeks a determination that the settlement was made in good faith. No opposition has been filed. Defendant previously filed a motion for determination of good faith settlement that was denied on June 11, 2026 for failure to submit sufficient evidence or argument in support.

II.

ARGUMENTS

A.

Motion filed June 11, 2026

Defendant

Med-Laser moves for a determination that its settlement with Plaintiffs Daniella Shear and Brian Shear is in good faith pursuant to Code of Civil Procedure section 877.6. Pursuant to the settlement, Defendant Med-Laser states it will pay a confidential amount in exchange for a full and complete prelease of all claims against it, including a Civil Code section 1542 waiver, a dismissal with prejudice of Plaintiffs' complaint against Defendant Med-Laser and the agreement that each party would bear their own costs and fees.

Defendant

argues the principal damages arise from conduct of other Defendants who examined Plaintiff Daniella Shear and performed surgery on her for a detached retina. Defendant argues it was merely the facility where the surgery was performed and Plaintiffs do not allege any wrongful conduct relating to equipment issues, sterilization failures or safety protocol violations. Defendant argues Plaintiff confirmed in her deposition that she had no complaints about the surgical center's staff other than wanting more empathy from the nurse providing aftercare instructions.

Defendant

argues it entered into the settlement to avoid potential liability and increased costs if the litigation continued to trial. Defendant argues its settlement amount is not grossly disproportionate to its liability since it's liability was essentially zero.

Defendant

does not disclose the settlement amount. Defendant states that the entirety of the settlement is being made to Plaintiffs and no allocation is necessary. Defendant argues there is no collusion, fraud or tortious conduct intended the interests of non-settling parties. Defendant argues it was insured up to \$1,000,000.

B.

No Opposition or Reply filed as of September 2,
2022

III.

LEGAL STANDARDS

Code of

Civil Procedure section 877.6 states, in pertinent part: "(a) Any party to an action wherein it is alleged that two or more parties are joint tortfeasors shall be entitled to a hearing on the issue of good faith or a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors . . . [para.] (c) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasors from any further claims against the settling tortfeasors for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. [para.] (d) The party asserting the lack of good faith shall have the burden of proof on that issue." Two procedures are available to obtain a court determination of the "good faith" issue, either an application, which may be followed by a motion contesting the application or a regular motion filed by the party seeking approval.

(Code Civ. Proc., §877.6, subds.

(a)(1) and (2).)

In

determining whether a settlement is in good faith, the Tech-Bilt court stated that the trial court should inquire into, among other things, "...whether the amount of the settlement is within the reasonable range of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries." (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.)

The

intent and policies underlying section 877.6 require that a number of facts be taken into account (i.e. the Tech-Bilt factors) including: (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among defendants; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and

(6) the existence of collusion, fraud, or tortious conduct aimed to injure the interest of the nonsettling defendants. A defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be.

The

party asserting the lack of good faith has the burden of proof. (Code Civ. Proc., §877.6, subd. (d).) The party asserting lack of good faith should

demonstrate, if he can, that the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the objective of section 877.6. (Tech-Bilt at 500-501.) A determination that the settlement was in good faith would "bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., §877.6, subd. (c).) Any existing cross-complaints for such claims would be subject to dismissal.

While

an unopposed application for good faith settlement may be granted on bare bones facts, an opposed application requires the Court to consider the settlement based on the Tech-Bilt factors. (City of Grand Terrace v. Supr. Ct. (1987) 192 Cal.App.3d 1251, 1261.) This requires the settlor to provide the Court with "sufficient evidentiary basis to enable the court to consider and evaluate the various aspects of the settlement." (Id. at 1263.)

"Because Tech-Bilt mandates a rough approximation of the settling defendant's proportionate liability and consideration of all other defendants' proportionate liability and consideration of all other factors that might affect the fairness of the settlement as respects non-settling defendants, the affidavits, declarations or other evidence should provide the court with the facts necessary to evaluate the settlement in terms of the factors contemplated by Tech-Bilt. Without the facts, in a contested hearing, it is impossible for a court to exercise its discretion in an appropriate fashion." (Id.)

IV.

DISCUSSION

The Court previously denied Defendant

Med-Laser's motion for determination of good faith settlement on grounds that (1) Defendant failed to provide details regarding the settlement on grounds of confidentiality, which it may not do pursuant to *Alcal Roofing & Insulation v. Superior Court* (1992) 8 Cal.App.4th 1121, 1127 ("Alcal") ["We note that a party may not both seek confirmation of a settlement agreement and withhold it from nonsettling defendants on grounds of confidentiality"]; (2) Defense counsel's statement that she discussed the settlement verbally and none of them opposed the settlement was insufficient to support a finding of good faith; (3) Defendant did not discuss the Tech-Bilt factors or submit a memorandum of points and authorities.

In this renewed motion for determination of good faith settlement, Defendant Med-Laser discusses the Tech-Bilt factors in its memorandum of points and authorities. Defendant therefore cures two of the three defects raised in the June 11, 2026 ruling.

Defendant continues to withhold the settlement amount from the Court on grounds of confidentiality. However, the application is unopposed. Alcal Roofing did not require disclosure of the settlement agreement, including the amount of settlement, where the application for good faith settlement is uncontested. Alcal Roofing explained that in the where the settlement is contested by nonsettling parties, the moving party must make available to nonsettlers and the court the details of the settlement. The Court distinguished the lax "bare bones" showing allowed for in *City of Grand Terrace*, supra, 192 Cal.App.3d at 1261 on grounds that City of Grand Terrace was discussing uncontested settlements:

"The court there [*City of Grand Terrace*] merely suggested that because many settlements are uncontested the settlor's initial papers need only set forth the ground of good faith accompanied by a declaration which sets forth a brief background of the case. This does not excuse settlors in a contested case from making available to nonsettlers and the court the details of the settlement...We note that a party may not both seek confirmation of a settlement agreement and withhold it from nonsettling defendants on grounds of confidentiality."
(*Alcal Roofing*, supra, 8 Cal.App.4th at 1127.)

Defendant Med-Laser's Application for Good Faith Settlement is unopposed. All parties were served with the Application and no opposition was filed. Defense counsel also testifies under penalty of perjury that she discussed the settlement with the other defendants and they did not oppose the settlement. Under these circumstances, the standard for determination of good faith settlement set forth under City of Grand Terrace applies. Defendant Med-Laser is therefore only required to submit a "bare bones" declaration describing the settlement in general terms and briefing setting for the grounds to find good faith. (City of Grand Terrace, supra, 192 Cal.App.3d at 1261.) Defendant satisfies the City of Grand Terrace standard. (Tanaka Dec., ¶¶1-20.) Defendant Med-Laser's motion for determination of good faith settlement is therefore granted.

V.

CONCLUSION

Defendant Med-Laser's Motion for Determination of Good Faith Settlement is GRANTED.